

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #7	CCRB Case #: 201907644	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/18/2019 1:40 PM	Location of Incident: § 87(2)(b)	Precinct: 110	18 Mo. SOL 2/18/2021	EO SOL 10/5/2021	
Date/Time CV Reported Tue, 08/27/2019 4:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/27/2019 4:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kishan Boodhu	04557	964399	110 PCT
2. POF Amy Minier	22954	962623	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Patrick Garbulewski	07242	960571	110 PCT
2. POM Jonathan Poma	31110	959084	110 PCT
3. POM George Vrotsos	21772	960059	110 PCT
4. POM Dilmurod Hamidov	24561	962459	110 PCT
5. POM Christophe Renieris	29881	933244	110 PCT
6. POM Peter Devincenzi	15360	952669	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu stopped § 87(2)(b)	
B.POF Amy Minier	Abuse: Police Officer Amy Minier stopped § 87(2)(b)	
C.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu stopped § 87(2)(b)	
D.POF Amy Minier	Abuse: Police Officer Amy Minier stopped § 87(2)(b)	
E.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu frisked § 87(2)(b)	
F.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu searched § 87(2)(b)	
G.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu frisked § 87(2)(b)	
H.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu searched § 87(2)(b)	
I.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu failed to provide § 87(2)(b) with a business card.	
J.POF Amy Minier	Abuse: Police Officer Amy Minier failed to provide § 87(2)(b) with a business card.	

Officer(s)	Allegation	Investigator Recommendation
K.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu failed to provide § 87(2)(b) with a business card.	
L.POF Amy Minier	Abuse: Police Officer Amy Minier failed to provide § 87(2)(b) with a business card.	
M.POF Amy Minier	Abuse: Police Officer Amy Minier refused to provide her shield number to § 87(2)(b)	
N.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu failed to obtain language interpretation services for § 87(2)(b)	
O.POF Amy Minier	Abuse: Police Officer Amy Minier failed to obtain language interpretation services for § 87(2)(b)	
P.POM Kishan Boodhu	Abuse: Police Officer Kishan Boodhu failed to obtain language interpretation services for § 87(2)(b)	
Q.POF Amy Minier	Abuse: Police Officer Amy Minier failed to obtain language interpretation services for § 87(2)(b)	

Case Summary

On August 27, 2019, § 87(2)(b) filed the following complaint by calling the CCRB. BWC was obtained for this case (Board Review 01-03).

On August 18, 2019 at approximately 1:40 p.m., PO Kishan Boodhu and PO Amy Minier of the 110th Precinct in Queens responded to an incident involving two men accusing each other of having a gun near § 87(2)(b) in Queens. PO Boodhu and PO Minier stopped the two individuals, § 87(2)(b) and § 87(2)(b) to investigate (**Allegations A, B, C, and D: Abuse of Authority, § 87(2)(g)**). PO Boodhu frisked § 87(2)(b) (**Allegation E: Abuse of Authority, § 87(2)(g)**) and then went into the pockets of his shorts (**Allegation F: Abuse of Authority, § 87(2)(g)**). Similarly, PO Boodhu frisked § 87(2)(b) (**Allegation G: Abuse of Authority, § 87(2)(g)**) and then searched the pockets of his sweatpants (**Allegation H: Abuse of Authority, § 87(2)(g)**). Finding no weapons, PO Boodhu instructed § 87(2)(b) to leave the location. Neither PO Boodhu or PO Minier provided § 87(2)(b) or § 87(2)(b) with business cards (**Allegations I, J, K, and L: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) allegedly asked PO Minier for her shield number, and PO Minier allegedly responded “no” (**Allegation M: Abuse of Authority: § 87(2)(g)**).

PO Boodhu and PO Minier temporarily left the location but then returned to § 87(2)(b) to get missing information for a stop report. § 87(2)(b) and his wife § 87(2)(b) unsure of why the officers needed more information, allegedly asked for translation services, which PO Boodhu and PO Minier allegedly denied (**Allegations N, O, P, and Q: Abuse of Authority, § 87(2)(g)**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Kishan Boodhu stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Amy Minier stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Kishan Boodhu stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Amy Minier stopped § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Kishan Boodhu frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Kishan Boodhu searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Kishan Boodhu frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Kishan Boodhu searched § 87(2)(b)

Shortly before 1:05 p.m. on August 18, 2019, § 87(2)(b) called 911 to report that § 87(2)(b) pointed a gun at him while he was near § 87(2)(b) § 87(2)(b) where § 87(2)(b) lives (Board Review 04).

According to § 87(2)(b)'s statement, § 87(2)(b)'s daughter has an order of protection against § 87(2)(b) (Board Review 05). § 87(2)(b) provided a picture of the order of protection to the investigation (Board Review 06). Shortly before 1:40 p.m. on August 18, 2019, § 87(2)(b) saw § 87(2)(b) down the block from his home at § 87(2)(b) § 87(2)(b) in Queens. A neighbor told § 87(2)(b) that § 87(2)(b) had a gun, so § 87(2)(b) called 911 (Board Review 04). Several officers responded to the scene. Among them were PO Kishan Boodhu and

PO Amy Minier of the 110th Precinct in Queens. PO Boodhu said in his interview that neither § 87(2)(b) nor § 87(2)(b) were free to leave because he had to investigate the reports of weapons (Board Review 07). PO Minier also acknowledged in her interview that neither of the men were free to leave (Board Review 08). § 87(2)(b) also alleged in his complaint that PO Minier told him not to move during the incident. PO Minier's BWC also captures her telling § 87(2)(b) to stand exactly where he is at 04:20 and § 87(2)(b) to "stand right where you at" at 07:26 in her second video (Board Review 02).

§ 87(2)(b) provided the name and a pedigree/clothing description to the 911 operator in his 911 call when he told them that § 87(2)(b) violated an order of protection and pointed a firearm at him. § 87(2)(b) described § 87(2)(b) as a black man wearing a brown shirt and black pants with white stripes. § 87(2)(b) matches this description when viewed on BWC. § 87(2)(b) also mentioned that he had an order of protection against § 87(2)(b) in his 911 call, and § 87(2)(b) tells the officers that § 87(2)(b) has an order of protection against him. § 87(2)(b) points out § 87(2)(b) in person at 00:39 in PO Minier's second BWC video. Neither PO Boodhu nor PO Minier witnessed anything on § 87(2)(b) or § 87(2)(b) that could have been a weapon, but they both said that an in-person verified complaint of a gun provides them with the legal authority to stop and frisk them. § 87(2)(b) said in his statement that he told PO Boodhu and PO Minier about § 87(2)(b)'s weapon and this was largely consistent with PO Boodhu's and PO Minier's testimonies.

At 09:20 in PO Minier's second BWC video, PO Boodhu pats down § 87(2)(b) with his consent. PO Boodhu pats down § 87(2)(b) up and down his shirt, his waistband, and around the many pockets on his shorts. After finishing the pat down, PO Boodhu reached into the front pockets and turned them inside out, revealing them to be empty. § 87(2)(b) said in his statement that he had nothing in his pockets at the time. PO Boodhu did not remember going into § 87(2)(b)'s pockets but did not dispute that he did when presented with the video during his interview. PO Boodhu did not recall a reason for why he entered his pockets as he remembered the results of the frisk to be negative.

At 13:44 in the same video, PO Boodhu approaches § 87(2)(b) and tells him that they are going to check him for weapons. PO Boodhu similarly pats § 87(2)(b) down up and down his shirt, near his waist, and up and down his pants. PO Boodhu then reaches into his left pocket and pulls out a set of keys. He then goes into his right pocket and finds a phone. PO Boodhu acknowledged in his interview that he had searched § 87(2)(b) only after he felt a hard object, which turned out to be the phone. PO Boodhu did not remember going into the other pocket. Upon being presented with footage of him entering the other pocket, PO Boodhu said that he did not remember searching that pocket. Both PO Boodhu and PO Minier acknowledged that neither of the two men were under arrest and were not suspected of any crimes other than the cross complaints of possessing a weapon and § 87(2)(b) violating the order of protection.

People v. DeJesus 169 A.D.2d 521 holds that, "Even in instances where the informant is unidentified where the police have had a face-to-face confrontation with the informant, and have had an opportunity to evaluate his or her reliability, such information, while not rising to the level of probable cause, may provide the reasonable suspicion necessary for a stop and frisk" (Board Review 09).

Terry v. Ohio 392 U.S. 1 states that officers may not "conduct a general exploratory search for whatever evidence of criminal activity he might find" (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (I) Abuse of Authority: Police Officer Kishan Boodhu failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: Police Officer Amy Minier failed to provide § 87(2)(b) with a business card.

Allegation (K) Abuse of Authority: Police Officer Kishan Boodhu failed to provide § 87(2)(b) with a business card.

Allegation (L) Abuse of Authority: Police Officer Amy Minier failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) said in his statement that he was not provided with a business card during this incident. PO Boodhu said in his statement that he did not remember if he provided a business card. PO Minier affirmed in her statement that she did not provide a business card due to the fact that she did not frisk either of the individuals, and she did not remember if PO Boodhu had provided a business card. Although he did not remember if he provided a business card or not, PO Boodhu acknowledged during his interview that he is required to provide cards during stops and frisks.

PGP 203-09 holds that officers must provide business cards during stops where is a reasonable suspicion that the person stopped is involved in illegal activity and would not feel free to leave. Officers must also provide business cards during frisks (Board Review 11).

§ 87(2)(g)

Allegation (M) Abuse of Authority: Police Officer Amy Minier refused to provide her shield number to § 87(2)(b)

Allegation (N) Abuse of Authority: Police Officer Kishan Boodhu failed to obtain language interpretation services for § 87(2)(b)

Allegation (O) Abuse of Authority: Police Officer Amy Minier failed to obtain language interpretation services for § 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer Kishan Boodhu failed to obtain language interpretation services for § 87(2)(b)

Allegation (Q) Abuse of Authority: Police Officer Amy Minier failed to obtain language interpretation services for § 87(2)(b)

§ 87(2)(b) alleged in his statement that as PO Minier went back to her RMP at the end of the incident, that he asked her for her shield number, and that she responded “no.” PO Minier denied that § 87(2)(b) had ever asked her for her shield number and PO Boodhu had no recollection of § 87(2)(b) making such a request.

About a half hour after the incident had ended, PO Boodhu and PO Minier returned to the location. § 87(2)(b) PO Boodhu, and § 87(2)(b)s wife § 87(2)(b) all said that the officers returned to get more information from § 87(2)(b) PO Minier said that they returned to get information about a woman who claimed that her phone was stolen and that the visit was not regarding the stop report. She did not remember if the woman she spoke with in Spanish in her first BWC video was the same person for whom they were preparing the report.

§ 87(2)(b) alleged in his statement that when the officers returned, he requested translation services as he did not fully understand why the officers needed his information. He further alleged that PO Boodhu told him that he spoke enough English and refused to provide a translator. PO Boodhu said in his interview that he called the Language Line after § 87(2)(b) indicated that she did not speak English. He further said that § 87(2)(b) was never on scene when he returned to get more information for the stop report but added that § 87(2)(b) was speaking with him clearly in English when they were there before to settle the dispute over the order of protection. On BWC, § 87(2)(b) is seen and heard speaking with the officer in English. § 87(2)(b) had said in a phone statement to the CCRB that the officers did not provide a translator when they returned to the scene and they did not provide a translator when she asked them to do so (Board Review 12). § 87(2)(b) also made a 911 call and stated that officers were not providing a translator (Board Review 04). PO Boodhu said in his statement that § 87(2)(b) said that she would call 911 since they have translators but that he told her that was not necessary because he could call a translator himself.

PO Minier, who speaks Spanish, said that when she returned with PO Boodhu later, no one had requested a translator, and as such, the Language Line was never called. At 02:39 in her first BWC, PO Minier briefly converses with § 87(2)(b) in Spanish, asking if she had called 911 about a gun and if anyone else lives in the location with her. PO Minier also did not remember if § 87(2)(b) was ever on scene when they returned and did not recall him ever asking for a translator. PO Minier added that she would have spoken Spanish with anyone who requested that she do so and would have called a translator if a civilian had difficulty understanding her Spanish.

PO Minier is on video clearly conversing with § 87(2)(b) in Spanish, § 87(2)(g)
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Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party.
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- PO Kishan Boodhu has been a member-of-service for 2 and this is the first CCRB complaint to which he has been a subject.
- PO Amy Minier has been a member-of-service for 3 years and has been a subject in one other complaint and one other allegation, which is still being investigated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was accepted for mediation on September 23, 2019 and returned to the Investigations unit on January 6, 2020.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 16, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 15).

Squad No.: 7

Investigator: Stephen J. DiFiore Inv. Stephen DiFiore September 1, 2020
Signature Print Title & Name Date

Squad Leader: _____ Manager Vanessa Rosen _____ 09/1/2020
Signature Print Title & Name Date

Reviewer: _____ _____ _____
Signature Print Title & Name Date